



2025:AHC:227466-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 44490 of 2025

Sequel Alloys And Wires Pvt Ltd

.....Petitioner(s)

Versus

The State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Abhijeet Mukherji
Counsel for Respondent(s)	:	Abhishek Srivastava, C.S.C.

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

1. Heard learned counsel for the petitioner, learned Standing Counsel for State-respondent no.1 and Ms. Kritika Sinha, holding brief of Sri Abhishek Srivastava, learned counsel for respondent no.2 & 3.
2. The petitioner being aggrieved by the imposition of certain amount in the electricity bill under the heading 'energy arrears' has approached this Court by filing the present petition.
3. According to the petitioner, the petitioner is exempted under the Government Order dated 31.03.2008 from paying electricity duty. When the respondents continued to charge the electricity duty, the petitioner approached this Court by filing Writ-C No.52391 of 2016 in which this Court granted an interim order restraining the authorities from realising the aforesaid electricity duty.
4. According to the petitioner, now in order to circumvent the interim order passed by this Court in Writ-C No.52391 of 2016, the respondents under a new heading "energy arrears" are imposing liability upon the petitioner.
5. It is contended that the petitioner's Company being a Special Economic Zone (SEZ), the respondent cannot charge the aforesaid 'energy arrears'.
6. The question as to whether the respondent has power to charge the "energy arrears" from the petitioner can very well be considered by the competent authority under Para 6.1 of the U.P. Electricity Supply Code, 2005.

7. In such view of the fact, we ***dispose off*** the writ petition permitting the petitioner to file a detailed representation under Para 6.1 of the U.P. Supply Code, 2005 before the competent authority raising all its grievances against the imposition of "energy arrears" and other charges within a period of one month from today. In case, any such representation is filed by the petitioner before the competent authority under Para 6.1 of the U.P. Electricity Supply Code, 2005, the competent authority shall consider and decide the same strictly in accordance with law after giving due notice and opportunity of hearing to the petitioner within a period of one month thereafter.

December 17, 2025

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(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)